

STATE OF NEW YORK

4466--A

2025-2026 Regular Sessions

IN SENATE

February 5, 2025

Introduced by Sens. MAYER, FAHY, MURRAY, SUTTON, WEBB, WEBER -- read twice and ordered printed, and when printed to be committed to the Committee on Codes -- recommitted to the Committee on Codes in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the civil rights law, in relation to the display of religious items on dwellings

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The civil rights law is amended by adding a new section
2 79-r to read as follows:

3 § 79-r. Display of religious items on dwellings. 1. Except as other-
4 wise provided in this section, a property owner or controlling entity
5 shall not enforce or adopt a restrictive covenant or any other
6 restriction that prohibits one or more religious items from being
7 displayed or affixed on the owner's or resident's entry or entry door-
8 frame of their dwelling.

9 2. This section shall not prohibit the enforcement of any restriction
10 prohibiting the display or affixing of a religious item on any property
11 owner's or resident's dwelling that:

12 (a) threatens the public health or safety;

13 (b) violates any federal, state, local law, code, rule or regulation;

14 (c) contains graphics, language or any display that is obscene or
15 otherwise illegal; or

16 (d) is an unreasonable or obtrusive size.

17 3. If an owner or controlling entity is performing maintenance,
18 repair, replacement, or other work affecting the location of a religious
19 display protected by this section, the resident may be required to
20 temporarily remove or relocate such display for the duration of such
21 work. Upon completion of the work if the religious item was removed, the

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 resident shall be able to restore the display. Reasonable notice shall
2 be provided where practicable.

3 4. As used in this section, the following terms shall have the follow-
4 ing meanings:

5 (a) "Dwelling" means a housing accommodation, or any part thereof,
6 used or occupied, or intended, arranged, or designed to be used or occu-
7 pled, as a home, residence, or sleeping place of one or more persons,
8 and includes a rental dwelling unit, a condominium unit, and a dwelling
9 unit occupied by a shareholder or proprietary lessee in a cooperative
10 housing corporation;

11 (b) "Owner" includes an owner, lessee, sub-lessee, assignee, landlord,
12 lessor, sublessor, grantor, managing agent, or other person having the
13 right of ownership or possession of a dwelling or the right to rent,
14 lease, license, or otherwise grant occupancy thereof.

15 (c) "Controlling entity" means a cooperative housing corporation,
16 condominium board, homeowners' association, managing agent, landlord, or
17 any other person or entity authorized to adopt or enforce rules, coven-
18 ants, bylaws, lease terms, proprietary lease terms, or other
19 restrictions affecting a dwelling or residential premises;

20 (d) "Resident" means a person lawfully occupying a dwelling, including
21 a tenant, subtenant, condominium unit owner, shareholder, or proprietary
22 lessee; and

23 (e) "Religious item" means an item displayed because of sincerely held
24 religious belief.

25 § 2. This act shall take effect on the thirtieth day after it shall
26 have become a law.